

LEASE AGREEMENT — APPLE STORE (UNIT 108)

Lease agreement - lease_apple_108 - Generated from Operio source markdown

This Lease Agreement is entered into by and between **Operio Mall Properties Ltd.** (Landlord) and **Apple Canada Inc.** (Tenant) for the premises located at Unit 108, Sector A.

Section 6. Maintenance and Triple-Net Liabilities

Section 6.1 - Full HVAC Operational Liability

This agreement is a triple-net lease. The Tenant shall assume 100% of the cost and responsibility for the maintenance, repair, and replacement of all dedicated HVAC units, compressors, coils, heat pumps, and ducts serving Unit 108.

- **Landlord Exemption:** Landlord is exempt from any HVAC maintenance or repair costs, regardless of the single repair event value.

Section 6.2 - Structural Roof Membrane and Storefront Glass

The Tenant is responsible for repairing the structural roof membrane directly above Unit 108 if damage is related to HVAC weight or roof penetrations. The Tenant also assumes full liability for all storefront glazing, structural glass supports, and entryway glass doors.